

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTIAN ZAPPATO,

Petitioner

VS.

PHUONG NGUYEN,

Respondent

) Case Number: FPT-21-377886

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER CHANGE OF VISITATION
(PARENTING TIME), DECISION MAKING AUTHORITY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Christian Zappato (Father) and Respondent, Phuong Nguyen (Mother).
The minor child subject to this proceeding is Isaac Zappato (DOB: 10/22/20).
- 2) On March 30, 2026, Mother filed a Request for Order seeking a modification of visitation
(Parenting Time) and Decision-Making Authority orders.
- 3) On May 4, 2026, Father filed a Responsive Declaration to Mother's Request for Order, which has
been read and considered by the Court.
- 4) On May 12, 2026, Mother filed a Reply to Father's Responsive Declaration, which has been read
and considered by the Court.
- 5) On May 18, 2026, the Court held a "Readiness" hearing and referred the parties to FCS
Mediation on June 5, 2026 and set a return hearing for June 30, 2026.
- 6) The parties attended FCS Mediation on June 5, 2026, and were unable to reach an agreement.

1 7) On June 17, 2026, Father filed a supplemental declaration, which has been read and considered
2 by the Court.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child is the United States.

8 2) Mother's requests contained within her Request for Order filed on March 30, 2026, are all
9 DENIED, with two exceptions.

10 a. Mother's request that the parties shall use a licensed barber for the minor child's haircuts
11 is GRANTED.

12 b. Mother's request that the parties shall comply with California Vehicle Code regarding the
13 transportation of the minor child is also GRANTED. Both parties shall provide
14 transportation for the minor child in full compliance with California Traffic laws.

15 3) Father's request for modification of the visitation schedule is GRANTED. Commencing June 30,
16 2026, the parenting plan shall be modified as follows:

17 a. A rotating 2/2/3 schedule shall be implemented forthwith.

18 b. Week 1: Father shall have care and custody of the minor child on Monday-Tuesday;
19 Mother shall have care and custody of the minor child Wednesday-Thursday; Father shall
20 have care and custody of the minor child Friday-Sunday.

21 c. Week 2: Mother shall have care and custody of the minor child on Monday-Tuesday;
22 Father shall have care and custody of the minor child Wednesday-Thursday; Mother shall
23 have care and custody of the minor child Friday-Sunday.

24 d. Week 3: Same as Week 1.

25 e. Week 4: Same as Week 2.

26 f. Week 5: Same as Week 1.

27 g. Exchange days/time shall occur on: Tuesdays, Thursdays and Sundays at 6:00 p.m.
28 Receiving parent to pick up the minor child from the other parent's home.
29

- 1 4) Both parents are ordered to take the minor child to ALL of his currently scheduled therapies
2 (speech, ABA, OT, group sessions, and evaluations) on their respective parenting days. Failure
3 to ensure the minor child attends each of his scheduled therapies may result in a change to the
4 parenting schedule.
- 5 5) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.
- 6 6) The Court will prepare the Findings and Order After Hearing.